

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
Thursday 9/24/2026 at 2:00 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case

Title / Nature of Case

2:00 PM

LINE: 1

23-CIV-05908

**IN THE MATTER OF THE ASSUMPTION OF JURISDICTION OVER LAW RATICE OF ARNOLD
MARCUS WOODS, STATE BAR MEMBERSHIP # 183638**

MURRAY WOODS

BRADLEY J EPSTEIN

**PETITIONERS' MURRAY WOODS AND JANICE BUTLER'S MOTION FOR ORDER CEASING LAW PRACTICE AND THE
COURT'S JURISDICTION OVER THE LAW PRACTICE**

TENTATIVE RULING:

PARTIES TO APPEAR.

2:00 PM

LINE: 2

24-CIV-03510

ERIK DAVIS VS. ESTELLA WEEMS, ET AL

ERIK DAVIS
ESTELLA WEEMS

ROBERT G MACK
JASON P TORTORICI

NUNILA ACIO'S MOTION FOR APPOINTMENT OF GUARDIAN AD LITEM

TENTATIVE RULING:

For the reasons stated below, Janet Acio's motion to appoint a guardian ad litem for Nunila Acio is **GRANTED**, subject to the disclosure and undertaking stated below. The competing motion by Estella Weems and The Weems-Young Group, Inc. to appoint an independent guardian ad litem is **DENIED WITHOUT PREJUDICE** to a properly supported application based on a demonstrated conflict or later change of circumstances. Janet Acio is appointed guardian ad litem for Nunila Acio in her individual capacity in this action; Janet's separate status as trustee or litigant does not, by itself, confer authority to represent Nunila individually.

FINDINGS

The declarations from treating physicians, summarized in the moving papers, establish Nunila's present lack of capacity to conduct this litigation. An adult lacking legal capacity must appear through a duly authorized representative, including a court-appointed guardian ad litem. (Code Civ. Proc., §§ 372, subd. (a)(1), 373, subd. (c).) The guardian may be appointed "upon the application of a relative or friend of the person lacking legal competence to make decisions, or of any other party to the action or proceeding, or by the court on its own motion." (*Id.*, at § 373, subd. (c).)

Nunila's November 11, 2024 durable power of attorney appoints Janet and another family member as attorneys-in-fact. Such a designation supports a rebuttable presumption in favor of the nominee's appointment as guardian ad litem; it does not constitute appointment by itself. (*In re Marriage of Caballero* (1994) 27 Cal.App.4th 1139, 1151–1152.)

POTENTIAL CONFLICTS

The opposing parties identify Janet's relationship to an adverse party, her role as trustee and remainder beneficiary, and the possibility of claims concerning trust administration. The Court does not dismiss those matters categorically; rather, on the evidence presently summarized, no concrete, nonwaivable divergence between Nunila's individual interests and Janet's interests has been established that rebuts the presumption. Allegations of fraud or coercion in execution of the power of attorney remain speculative on this record. Janet shall promptly disclose on the record any actual or potential conflict, her relationships with other parties, her trust interests, and any material claim that Nunila may have against Janet or the trust. (Code Civ. Proc., § 372,

subd. (d).) No individual claim of Nunila against Janet shall be compromised or released without further court authorization after full disclosure and notice to interested parties.

IMPLEMENTATION

Janet shall submit any required consent, disclosure, and proposed appointment order identifying Nunila and the capacity in which Janet acts. The Court retains authority to replace the guardian ad litem if a material conflict appears or the appointment ceases to protect Nunila's interests.

Janet's request for judicial notice is **GRANTED ONLY** as to matters properly noticed, not the truth of disputed facts in court filings. (Evid. Code, § 452, subd. (d).)

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 3

24-CIV-03510

ERIK DAVIS VS. ESTELLA WEEMS, ET AL

ERIK DAVIS
ESTELLA WEEMS

ROBERT G MACK
JASON P TORTORICI

DEFENDANT ESTELLA WEEMS AND CROSS DEFENDANT THE WEEMS-YOUNG GROUP'S MOTION TO APPOINT NEUTRAL GUARDIAN AD LITEM FOR CROSS-DEFENDANT/CROSS-COMPLAINANT NUNILA ACIO

TENTATIVE RULING:

In light of the Court's previous ruling granting Janet Acio's Motion for Appointment of Guardian Ad Litem, The competing motion by Estella Weems and The Weems-Young Group, Inc. to appoint an independent guardian ad litem is **DENIED WITHOUT PREJUDICE** to a properly supported application based on a demonstrated conflict or later change of circumstances.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 4

24-CIV-04619

CAVA HOMES, LLC VS. MONIQUE DIAS, ET AL

CAVA HOMES, LLC
MONIQUE DIAS

LYNDSEY C HEATON
PAUL J. SMOOT

PLAINTIFF CAVA HOMES LLC'S MOTION FOR AN ORDER TO SHOW CAUSE AS TO WHY CONTEMPT SANCTIONS SHOULD NOT ISSUE AGAINST DEFENDANTS

TENTATIVE RULING:

THE PARTIES ARE TO APPEAR.

For the reasons stated below, Plaintiff Cava Homes, LLC's application for issuance of an order to show cause regarding indirect contempt of the November 13, 2025 inspection order is **GRANTED** solely for the purpose of setting a contempt hearing. No finding that any defendant committed contempt, acted willfully, or lacked a lawful excuse is made at this stage. The Court will issue a separate signed order to show cause identifying each respondent, the specific acts or omissions charged, the underlying order alleged to have been violated, and the date, time, and location of the hearing.

BACKGROUND

This dispute concerns two neighboring properties in Hillsborough. In 2019, Plaintiff purchased real property located at 50 Knightwood in Hillsborough ("50 Knightwood"). The property contains a single-family residence and is situated on a hill. Defendant Monique Dias ("Dias") resides at 60 Knightwood in Hillsborough ("60 Knightwood"), which is owned by Dias's mother, Defendant Ann Javer, through the Ann Javer Irrevocable Trust. Dias and Defendant Alexandra Fee serve as trustees of the trust. 60 Knightwood is located downslope from 50 Knightwood.

After purchasing the property, Plaintiff submitted plans to the Town of Hillsborough to renovate 50 Knightwood by constructing a two-story residence. The Complaint alleges that Dias has since repeatedly complained to the Town and Plaintiff about the renovation plans and construction, including allegations that Plaintiff caused water to flow onto 60 Knightwood. Plaintiff further alleges that, after a certificate of occupancy was issued for 50 Knightwood, Dias began interfering with efforts to sell the property, resulting in the loss of prospective sales.

GROUND'S FOR ISSUANCE

The November 13, 2025 order authorizes specified drilling and monitoring at 60 Knightwood subject to notice and permitting conditions. The declarations of John Van Loben Sels and Faybishenko identify alleged refusals of access following attempted scheduling and describe the respondents' notice of the order. Taken as charging

affidavits, and without resolving competing explanations concerning permits, utilities, insurance, or the order's conditions, the submissions provide a facial basis to require an answer to charges under Code of Civil Procedure sections 1209, subdivision (a)(5), and 1211, subdivision (a). The moving party must establish at the contempt hearing the existence of a valid and sufficiently definite order, each respondent's knowledge and ability to comply, and willful noncompliance. (*Conn v. Superior Court* (1987) 196 Cal.App.3d 774, 784.)

NOTICE AND HEARING

The signed order to show cause and the charging affidavits shall be served on each person against whom contempt is sought in the manner required for an indirect-contempt proceeding. Each respondent shall receive the procedural protections applicable to contempt, including notice of the specific charges and an opportunity to be heard. The Court does not adopt the moving party's characterization of respondents' motives or preclude evidence of inability to comply, ambiguity, compliance with permit requirements, or another lawful excuse. (Code Civ. Proc., §§ 1211–1217; *In re M.R.* (2013) 220 Cal.App.4th 49, 57–58.)

JUDICIAL NOTICE

The Court **GRANTS** judicial notice of Exhibit C solely as to the existence and contents of the identified court record, not the truth of disputed factual assertions in it.

As to Exhibits J, the second Exhibit K, T, and Y, judicial notice is limited to properly authenticated official acts and records; the Court does not take notice of the truth of disputed statements within them.

As to Exhibits R and S, the request is **GRANTED only** for the existence and content of any adequately identified issued permits and **DENIED** as to the accompanying emails.

Judicial notice of Exhibits D, E, the first Exhibit K, O, and P is **DENIED** on the current showing to the extent their origin or official status has not been established; lack of a certification alone is not always dispositive of authentication. (Evid. Code, §§ 452, subds. (c), (d), 453, 1530.)

PLAINTIFF'S OBJECTIONS

Plaintiff's objection No. 1 to the Anderson field notes is **SUSTAINED** on relevance grounds for purposes of issuance of the order to show cause; objections Nos. 2–4 are **MOOT**.

Objections Nos. 1–5 to Defendants' compendium are **OVERRULED** insofar as they assert a categorical bar to considering otherwise admissible material at this preliminary stage. The parties may raise proper evidentiary objections at the contempt hearing.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 5

24-CIV-07657

RICHARD DONOVAN VS. RENNA HU, ET AL

RICHARD DONOVAN
RENN A HU

JACQUELINE M SIMONOVICH
PAUL T LLEWELLYN

**PLAINTIFF AND CROSS DEFENDANT RICHARD DONOVAN'S FOURTH AMENDNED NOTICE OF MOTION TO FILE
ADDITIONAL ATTORNEY FEE RECORDS UNDER SEAL**

TENTATIVE RULING:

For the reasons stated below, Plaintiff Richard Donovan's unopposed motion to file additional attorney-fee records under seal is **GRANTED IN PART**, limited to the confidential narrative portions of Exhibit A to the declaration of Jacqueline M. Simonovich supporting Plaintiff's reply on attorney's fees, as described below. The fee motion remains set for October 15, 2026. Non-opposition alone does not justify sealing. (Cal. Rules of Court, rules 2.550(d)–(e), 2.551(a).)

LEGAL STANDARD

Court records are presumed open unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550(c).) A record may not be filed under seal without a court order, and the Court may not authorize sealing based solely on the parties' agreement, stipulation, or lack of opposition. (Cal. Rules of Court, rule 2.551(a); *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 597.) The Court may order a record sealed only if it expressly finds facts establishing that: "(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

FINDINGS

The records lodged conditionally under seal on August 25, 2026 consist of attorney billing entries for August 1 through August 26, 2025. The Court finds that the entry narratives identifying litigation tasks, legal strategy, or confidential attorney-client communications in this pending action implicate an overriding interest in preserving the attorney-client privilege and protected legal work product. Disclosure of those particular narrative descriptions presents a substantial probability of prejudice to that interest while the litigation is active. (Cal. Rules of Court, rule 2.550(d)(1)–(3); *Los Angeles County Board of Supervisors v. Superior Court* (2016) 2 Cal.5th 282, 300.) These findings concern confidential content, not a categorical privilege for each date, timekeeper initial, hour, rate, or amount appearing on a bill.

SCOPE OF SEAL

Sealing is limited to the narrative descriptions, or portions of descriptions, that would disclose the protected information. The billing dates, timekeeper identifiers, hours, rates, and amounts must remain in the publicly filed redacted copy unless a separate, entry-specific finding establishes that disclosure of one of those fields would reveal protected information. This limited sealing is narrowly tailored; a publicly filed copy with only the protected text redacted is a less restrictive means than sealing the entire invoice. The Court finds no less restrictive means to protect the identified confidential narratives. (Cal. Rules of Court, rule 2.550(d)(4)–(5), (e)(1).)

ORDER

The Clerk shall maintain the lodged complete Exhibit A under seal as the confidential counterpart to the public redacted exhibit; the unredacted material shall be available to the Court and persons permitted by applicable law or further court order. This order, the register of actions, and all other records remain public. Plaintiff shall file, or confirm that the public file contains, a corresponding legible copy of Exhibit A showing all nonprotected information. The sealing order applies only to the material specifically identified above, and no subsequent public filing may disclose its sealed contents. (Cal. Rules of Court, rules 2.550(e), 2.551(e).)

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 6

25-CIV-06841

ESTATE OF HUNTER BERGNER, BY AND THROUGH SUCCESSOR IN INTEREST, PATRIC, ET AL
VS. SAN MATEO COUNTY, A PUBLIC ENTITY, ET AL

ESTATE OF HUNTER BERGNER, BY AND THROUGH SUCCESSOR IN INTEREST, DENISSE O. GASTELUM
PATRIC ADAM M STODDARD
SAN MATEO COUNTY, A PUBLIC ENTITY

DEFENDANTS' ANNA KEHLER, MELODEE LEGASPI-TAPANG, KIM MARTINEZ, PATRICIA MARTINEZ, SAN MATEO COUNTY, AND SHERIFF CHRISTINA CORPUS' MOTION TO COMPEL RESPONSES TO WRITTEN DISCOVERY; REQUEST THAT ADMISSIONS BE DEEMED ADMITTED; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

For the reasons stated below, the motion brought by the County of San Mateo, Kim Martinez, Melodee Legaspi-Tapang, Patricia Martinez, and Anna Kelleher is **GRANTED IN PART**. Because the notice also lists Sheriff Christina Corpus, whose appearance or representation by moving counsel is not established in the submitted memorandum, this order grants no affirmative relief on her behalf absent clarification of her participation and service at the hearing.

BACKGROUND

On December 3, 2025, Defendants served Plaintiffs with Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Production of Documents (Set One), Requests for Admission (Set One), and Requests for Statements of Damages. (Stoddard Decl., filed Apr. 22, 2026, Ex. A.) Plaintiffs' counsel requested and was granted two extensions of time to serve responses. (Id., Ex. B.) On February 10, 2026, Plaintiffs served unverified responses to the discovery requests but failed to serve responses to the Requests for Statements of Damages. (Id., Ex. C.)

Because unverified responses are tantamount to no responses, Defendants' counsel met and conferred with Plaintiffs' counsel and requested that Plaintiffs serve verified responses, without objections, by April 17, 2026. (Id., Ex. D.) During the meet-and-confer discussions, Defendants' counsel advised that Defendants would file a motion to compel verified, objection-free responses and seek monetary sanctions if Plaintiffs failed to comply. Plaintiffs' counsel agreed to serve verified responses by April 17, 2026, but failed to do so.

Although the motion was filed several months ago, it remains unopposed. There is no evidence before the Court that Plaintiffs have served verified, objection-free responses to any of the above-referenced discovery requests.

INTERROGATORIES AND DOCUMENT DEMANDS

Within 15 calendar days after service of notice of entry of this order, each Plaintiff to whom Form Interrogatories (Set One), Special Interrogatories (Set One), or Requests for Production (Set One) were properly directed shall serve complete, code-compliant responses verified where required, and shall produce all responsive, nonprivileged documents as required by a proper production response. The unverified substantive responses described in the moving papers do not satisfy verification requirements. On the present record, objections to the demands have been waived by the failure to serve timely, code-compliant responses, subject to any statutory application for relief from waiver; the Court makes no advance merits ruling concerning a particular claim of relief from waiver or a specific production dispute not adequately presented. (Code Civ. Proc., §§ 2030.250, 2030.290, subds. (a)–(b), 2031.250, 2031.300, subds. (a)–(b).) The order does not require verification of objections-only responses unless otherwise mandated by statute.

STATEMENT OF DAMAGES

The motion to compel the overdue statement of the nature and amount of damages is **GRANTED** under Code of Civil Procedure section 425.11, subdivision (b). Within 15 calendar days after service of notice of entry of this order, each Plaintiff from whom the properly served request seeks damages shall serve the required statement identifying the nature and amount of damages sought on the applicable personal-injury or wrongful-death claim. A statement of damages is not an ordinary interrogatory response and should not be described as subject to discovery objection-waiver provisions.

REQUESTS FOR ADMISSION

The request to deem matters admitted is **GRANTED ONLY IF**, at the hearing, the Court finds that the particular responding Plaintiff has not served, before that hearing, verified proposed responses in substantial compliance with Code of Civil Procedure section 2033.220. (Code Civ. Proc., § 2033.280, subds. (b)–(c).) If qualifying responses were timely served before the hearing, the request to deem that Plaintiff's RFAs admitted is **DENIED**, even if the responses were late or subject to a separate, properly noticed challenge. The Court must examine substantial compliance of the proposed responses as a whole, not merely the presence of a verification or objections. If no qualifying responses were served, the matters stated in each identified RFA, Set One, are deemed admitted as against the particular responding Plaintiff. Any request for further responses or relief from objection waiver must comply with the applicable statutory procedure and notice; it is not automatically granted in the alternative on this no-response motion.

MONETARY SANCTIONS

The request for \$3,300 in monetary sanctions is **GRANTED** as to those Plaintiffs and attorneys specifically identified as sanction targets in the notice of motion, provided the Court confirms that the April 22, 2026 notice identifies each target and that counsel's declaration supports the amount. Sanctions for a motion necessitated by failure to serve timely RFA responses are mandatory notwithstanding service of compliant responses before hearing. (Code Civ. Proc., §§ 2033.280, subd. (c), 2023.040.) The Court finds the two extensions, subsequent unfulfilled commitment to verify responses by April 17, 2026, and resulting motion practice support the amount requested, if supported by the billing declaration. Named sanctioned persons

shall pay \$3,300 jointly and severally to moving Defendants' counsel within 30 calendar days after service of notice of entry of this order. The order does not impose personal sanctions on nonparty minors absent a legally sufficient showing and express findings identifying the person responsible for the discovery misconduct.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 7

25-CIV-10194

JESSICA C. BRADLEY VS. SKYHOP GLOBAL LLC, A FLORIDA LIMITED LIABILITY COMPANY, ET AL

JESSICA C. BRADLEY
SKYHOP GLOBAL LLC, A FLORIDA LIMITED LIABILITY COMPANY

KYLE DECAMP
KATHRYN T MCGUIGAN

DEFENDANT SKYHOP GLOBAL LLC'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS

TENTATIVE RULING:

For the reasons stated below, Defendant SkyHop Global LLC's motion is **GRANTED IN PART** solely to compel arbitration of the gateway enforceability dispute under Section V of the Mutual Arbitration Agreement. The Court has reviewed the operative complaint and finds that its pleaded facts do not establish a qualifying sexual-harassment dispute under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA). The Court makes no present order compelling arbitration of the underlying merits claims or of claims against nonmoving defendant Paul Tokuda. The action against SkyHop is **STAYED** pending determination of the gateway dispute, as specified below.

BACKGROUND

Plaintiff filed the operative complaint on December 31, 2025, asserting 16 employment-related causes of action against SkyHop and individual defendant Paul Tokuda, including gender discrimination, retaliation, harassment/hostile work environment (Gov. Code, § 12940, subd. (j)), wage-and-hour claims, and wrongful termination. She alleges that she began working as a shuttle driver on July 9, 2025, and that SkyHop terminated her by telephone on October 22, 2025, following an October 11 noncollision braking incident. (Complaint, ¶¶ 11, 20–23.) Hailom's employment records identify October 25, 2025, as the date Plaintiff ceased employment. (Original Hailom Decl., ¶ 6.) The Court does not resolve that employment-date discrepancy on this motion. The complaint, including its Civil Rights Department (CRD) charge and right-to-sue exhibit, has now been reviewed together with the motion papers.

The complaint alleges that SkyHop subjected Plaintiff to disparate discipline: it terminated her after a driving incident but retained at least one similarly situated male employee allegedly involved in a comparable incident. Plaintiff also alleges that, after she discussed denied meal and rest breaks with coworkers, Defendants subjected her to heightened scrutiny and an intimidating and hostile work environment culminating in termination. (Complaint, ¶¶ 19, 22–24, 32, 38, 41–45.) The third cause of action incorporates these facts but does not identify particular sex-based remarks, unwanted sexual conduct, or other distinct harassing acts separate from alleged disparate discipline and scrutiny following workplace wage complaints. The Court does not require sexually explicit words or touching as a categorical prerequisite to harassment; the issue is the absence of factual allegations of harassing conduct because of sex. The CRD charge attached as

Exhibit 1 checks a box alleging sex/gender harassment, but its narrative likewise describes unequal discipline, the response to wage complaints, and termination rather than additional particularized sex-based harassing conduct. (Complaint, Ex. 1, CRD charge, pp. 1–2.)

The Court considered: (1) the December 31, 2025 complaint and its attached CRD charge/right-to-sue materials; (2) SkyHop’s February 23, 2026 notice, motion, and memorandum, and its March 3 amended notice setting the September 24 hearing; (3) the original declaration of Timnit Hailom, including Exhibit A (offer letter), Exhibit B (Mutual Arbitration Agreement), and Exhibit C (Paylocity acknowledgment record); (4) the declaration of Mason J. Hattam and correspondence exhibits concerning the arbitration demand and refusal; (5) Plaintiff’s September 11 opposition and the declarations of Bradley and Kyle R. DeCamp, including DeCamp Exhibit A, SkyHop’s produced onboarding materials (SKYHOP-Bradley 000001–000054); (6) Plaintiff’s six written evidentiary objections; and (7) SkyHop’s September 17 reply, supplemental Hailom declaration, responses to Plaintiff’s objections, and SkyHop’s objections to the Bradley and DeCamp declarations. The Court considers the supplemental declaration as a response to authentication and business-records issues raised in opposition and will permit focused argument on that additional evidence at the hearing.

SkyHop expressly seeks enforcement of the delegation provision and arbitration of enforceability; alternatively, it asks the Court to compel Plaintiff’s merits claims and stay litigation. (Motion, pp. 2–3; amended notice, pp. 2–3.) SkyHop’s counsel sought voluntary arbitration by letter dated February 6, 2026; Plaintiff’s counsel declined, and the parties subsequently exchanged correspondence about enforceability. (Hattam Decl., ¶¶ 2–6, Exs. A–B; DeCamp Decl., ¶¶ 4–5.)

LEGAL STANDARDS

SkyHop bears the burden of proving the existence of an agreement to arbitrate by a preponderance of the evidence. The Court resolves disputed formation questions by weighing the evidence; a contractual delegation provision does not delegate the threshold question whether any agreement containing it was formed. (Code Civ. Proc., § 1281.2; Civ. Code, § 1633.9; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842–844; *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060–1062.) When an agreement contains clear delegation language, a challenge to the agreement as a whole ordinarily goes to the arbitrator unless a party specifically contests the separate delegation agreement. (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70–72; *Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 242–245.)

A mandatory employment arbitration agreement may be procedurally unconscionable, but unconscionability requires both procedural and substantive unfairness; an adhesive agreement must be scrutinized without treating adhesion alone as dispositive of substantive unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113–114; *Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93.) An independently applicable statute may override delegation. Under 9 United States Code section 402(b), the Court—not the arbitrator—decides the EFAA’s applicability notwithstanding a contractual delegation provision. To determine whether that statute applies, the Court evaluates the actual alleged conduct, not merely the title of a cause of action. (9 U.S.C. §§ 401(4), 402; *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75; *Decloedt v. Radnet Management, Inc.* (2026) No. B343963 [published opinion filed June 26, 2026, certified July 7, 2026].)

FORMATION AND EVIDENCE ACTUALLY FILED

Offer letter, promised email, and Paylocity acknowledgments

Hailom states that Bradley applied on June 3, 2025, using a personal email address, received an emailed offer letter on June 16, and that the offer letter was acknowledged on June 17, 2025, at 1:21:11 a.m. UTC. The signed offer letter describes arbitration as a condition of employment and states that the arbitration agreement is “attached in a separate email” and that the employee would have at least 72 hours to review and sign it before final acceptance. (Original Hailom Decl., ¶¶ 5–7, Ex. A; DeCamp Decl., ¶ 7, Ex. A [SKYHOP-Bradley 000001].) The supplied record does not contain a separately transmitted email attaching the arbitration agreement. That omission bears on notice and the promised process, but does not establish that Bradley never received the agreement through Paylocity.

Hailom states that SkyHop initiated Paylocity onboarding on June 30. Employees receive an individual username and temporary password, create a private password at initial login, open onboarding documents through individual links, and type a name to acknowledge each document. Hailom’s original declaration records that “an individual” used Bradley’s account and acknowledged Exhibit B in her name at 3:42:19 a.m. UTC on July 4, 2025. Exhibit C lists the name, acknowledgment, timestamp, and IP address; it does not itself identify a human eyewitness to the keystrokes. (Original Hailom Decl., ¶¶ 8–10, Exs. B–C; DeCamp Decl., ¶ 8, Ex. A [SKYHOP-Bradley 000041].)

In the supplemental declaration, Hailom specifies her positions and familiarity with Paylocity, supplies the foundation for business-records creation and retention, explains the unique-credential and document-opening procedures, and identifies the same specific acknowledgment in Bradley’s account. She converts its UTC timestamp to 8:42:19 p.m. Pacific time on July 3, 2025. (Supp. Hailom Decl., ¶¶ 1–8.) These additional facts substantially address the authentication gap raised by Plaintiff and are analogous to the individualized security-process showing accepted in *Espejo, supra*, 246 Cal.App.4th at pages 1061–1062. They are circumstantial evidence of attribution, not direct observation that Bradley personally typed her name. The Court credits the individualized system and acknowledgment records for the limited finding that the agreement was made available and acknowledged through Bradley’s account.

Bradley and DeCamp declarations; competing inferences

Bradley acknowledges completing onboarding but states that she does not recall signing or reviewing a Mutual Arbitration Agreement, receiving the separately promised email, or logging into Paylocity at the recorded time. She disputes knowingly accepting arbitration and describes the Covenant Care demand address as confusing. (Bradley Decl., ¶¶ 4–24, 25–34.) These statements are admissible evidence of her recollection and experience; they do not affirmatively establish that someone else accessed her account. Their weight is assessed with, not substituted for, the electronic and personnel records.

DeCamp attaches SkyHop’s produced onboarding records and points to an On-Duty Meal Period Agreement with a June 14, 2025 signature date, preceding the June 17 offer-letter signature. (DeCamp Decl., ¶¶ 6–10, Ex. A [SKYHOP-Bradley 000033].) Hailom responds that the meal-period form is a separate onboarding document created through a different step. (Supp. Hailom Decl., ¶ 9.) Although that response does not explain the earlier date, the record does not establish that the meal-period form and arbitration acknowledgment share the

same signing procedure. The discrepancy is considered but does not, by itself, disprove Exhibit C's individualized record.

Acceptance by employment

Exhibit B states that an employee accepts the arbitration offer by commencing employment or remaining employed for 15 days after notice; it also says that an electronic signature is not essential and that the employee cannot opt out while retaining employment. (§ XII and introductory paragraphs.) Hailom's records place Bradley's employment from July 9 through October 25, 2025. (Original Hailom Decl., ¶ 6, Ex. B.) The offer letter expressly refers to arbitration, and the individualized Paylocity evidence supports access to the agreement before Bradley began employment. The Court therefore finds by a preponderance that the parties formed an agreement containing Section V; the Court does not rest this finding solely on the bare appearance of Bradley's typed name. Employment alone would not establish assent without adequate notice. (See *Diaz v. Sohnen Enterprises* (2019) 34 Cal.App.5th 126, 130.)

Covenant Care reference

Section VI of the filed agreement directs that a demand "made to Covenant Care" may be delivered to that entity's general counsel, although the introductory definition identifies SkyHop Global LLC, its parents, subsidiaries, and affiliates as the Company, and Section I lists covered employment claims. (Original Hailom Decl., Ex. B, §§ I, VI; Bradley Decl., ¶¶ 25–32; DeCamp Decl., ¶ 9.) The misdirected address is a real drafting irregularity and may create uncertainty about demand procedures; the Court does not assume an unstated corporate relationship or rewrite the provision as a judicial finding of a clerical error. It does not, alone, show that the contracting employer is someone other than SkyHop or defeat the evidence of formation. Any dispute about applying this procedure remains subject to the EFAA and delegation analysis below.

UNCONSCIONABILITY CONTENTIONS AND SCOPE OF DELEGATION

Plaintiff contends that the arbitration agreement is unenforceable because it was presented as a mandatory, nonnegotiable condition of employment; the onboarding process and offer letter were confusing; Section III restricts class, collective, and nonindividual PAGA claims; and Section VIII requires an employee initiating arbitration to contribute up to \$450. The Court considers these asserted grounds for unconscionability in determining the scope of its present inquiry under Section V.

Procedural unconscionability: The agreement conditions employment on acceptance, provides no employment-preserving opt-out, and states that it applies even if the employee does not read it. The offer letter promises a separate email and a 72-hour opportunity to review, but SkyHop relies on later Paylocity delivery without producing the promised separate email. The erroneous Covenant Care reference adds uncertainty. Those circumstances support an adhesive, at least somewhat procedurally unconscionable presentation. (Original Hailom Decl., Exs. A–B; Bradley Decl., ¶¶ 5–24; DeCamp Decl., ¶¶ 7–10; Armendariz, *supra*, 24 Cal.4th at pp. 113–114.) The supplemental evidence bears on notice and formation but does not convert the arrangement into a negotiated contract.

Substantive unconscionability: Calling the contract a "unilateral offer" describes its method of acceptance; it does not prove that only Bradley must arbitrate. Section I includes employer claims such as trade-secret,

repayment, and duty-of-loyalty claims as well as employee statutory claims. Section VIII says SkyHop pays arbitrator fees and limits an employee's contribution to an amount equal to the court filing fee, up to \$450; on its face, this is not necessarily an arbitration-only cost, though its actual application to a statutory claim or a fee waiver could matter. Section III restricts collective and nonindividual proceedings, including PAGA, but Plaintiff has not pleaded a PAGA cause of action on the described record; enforceability and severability of a particular claim waiver would require a claim-specific analysis. These substantive concerns remain genuine issues for decision by the proper adjudicator, not an automatic basis for invalidating the entire agreement merely because it is mandatory. (Original Hailom Decl., Ex. B, §§ I, III, VIII–IX; Armendariz, supra, 24 Cal.4th at pp. 110–114; Fuentes, supra, 19 Cal.5th 93.)

These challenges concern principally the enforceability of the arbitration agreement as a whole. Because Plaintiff has not established a distinct basis for invalidating the delegation provision, Section V assigns resolution of the remaining enforceability questions to the arbitrator. The Court expresses no present determination on the ultimate validity of the agreement as a whole or the merits of the alleged FEHA and Labor Code violations.

DELEGATION, STATUTORY EXCEPTION, AND SCOPE

Section V and limits of the Court's finding

Section V gives the arbitrator “exclusive authority” over interpretation, applicability, enforceability, validity, and even formation of the agreement. The Court itself first determines whether an agreement containing that clause was formed, notwithstanding the clause's reference to formation. (Original Hailom Decl., Ex. B, § V; Rent-A-Center, supra, 561 U.S. at pp. 70–72.) Plaintiff challenges formation and the overall agreement's costs, claim waivers, and adhesive terms but does not develop a separate, specific basis for invalidating Section V itself—for example, an evidentiary showing that the disputed fee would unlawfully burden arbitration of the gateway dispute. The Court therefore enforces Section V and refers the gateway question of the remaining agreement's enforceability to arbitration. The Court does not presently compel arbitration of the underlying FEHA, wage, or other merits claims.

EFAA determination based on the operative complaint

The EFAA applies at the employee's election to a case relating to conduct alleged to constitute sexual harassment under applicable law; applicability is for the Court to decide notwithstanding delegation. (9 U.S.C. §§ 401(4), 402(a)–(b).) Harassment based on sex or sexual orientation need not involve a sexual proposition or physical contact. The Court nevertheless must identify factual allegations plausibly constituting prohibited harassment, rather than treating any count labeled “harassment” or “gender discrimination” as sufficient. (*Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75; *Decloedt v. Radnet Management, Inc.* (2026) No. B343963 [published June 26, 2026, certified July 7, 2026].) The events pleaded in this complaint occurred in 2025, after the EFAA's effective date, so the question here is whether the pleaded conduct is a qualifying dispute, not its timing.

The Court has examined the complaint's factual allegations and third cause of action. Paragraphs 22 and 32 allege a disparity between Plaintiff's termination and the treatment of a similarly situated male driver, potentially supporting a gender-discrimination theory. Paragraphs 19, 23, 24, 38, and 43 allege complaints

about wage-and-hour practices followed by scrutiny, unequal treatment, and termination. The third cause of action adds no particularized facts identifying sex-based harassing conduct apart from those personnel-management actions and the asserted response to wage complaints. The attached CRD charge marks sex/gender harassment but repeats the same factual narrative. (Complaint, ¶¶ 19, 22–24, 32, 38, 41–45 & Ex. 1, CRD charge, pp. 1–2.) Personnel-management decisions may support a discrimination claim but do not by themselves establish a distinct claim of harassing conduct under FEHA. (*Reno v. Baird* (1998) 18 Cal.4th 640, 645–647.) Unlike the complaints in *Quilala* and *Decloedt*, this complaint does not allege particularized humiliating, derogatory, threatening, or otherwise harassing conduct directed at Plaintiff because of her sex or gender. The Court does not decide the ultimate sufficiency of the third cause of action on a pleading motion; it decides only whether the operative complaint alleges a qualifying sexual-harassment dispute for purposes of the EFAA. On the present pleaded facts, it does not. Accordingly, the EFAA does not bar enforcement of Section V here. This conclusion concerns the complaint as presently pleaded and is without prejudice to any properly presented issue arising from a later amendment or additional proceedings.

EVIDENTIARY OBJECTIONS AND STAY

Plaintiff’s six objections to the original Hailom declaration principally assert inadequate personal knowledge, foundation, authentication, hearsay, and improper legal conclusion concerning paragraphs 1, 6–10 and Exhibits A–C. The original and supplemental declarations together establish sufficient foundation for Hailom to describe company records, onboarding procedures, and the system-generated records. Plaintiff’s objections are **OVERRULED** insofar as directed to those factual descriptions and records. The Court does not adopt Hailom’s ultimate characterization of who personally signed as a legal conclusion or rely on any lay technical opinion beyond the stated system practices. (Evid. Code, §§ 702, 1271, 1400–1401; Civ. Code, § 1633.9.)

SkyHop’s objections to the Bradley and DeCamp declarations are **OVERRULED** to the extent directed to Bradley’s own recollection, her experience during onboarding, and counsel’s authentication and identification of documents produced by SkyHop. The Court independently interprets the offer letter and arbitration agreement and gives no evidentiary weight to bare legal conclusions or speculation as to another user’s identity. Remaining objections not necessary to the limited factual findings are not reached. These rulings address the material actually relied upon; the parties’ objection papers and SkyHop’s written responses have been considered.

The action against SkyHop is **STAYED** under Code of Civil Procedure section 1281.4 pending the arbitrator’s gateway determination; the Court may revisit the stay upon that determination. Because Tokuda did not move and the present record does not independently establish his right to enforce this agreement, this ruling neither compels arbitration of claims against Tokuda nor automatically stays those claims. Any requested casewide stay requires a separate showing and order. The Court expresses no view on whether allegations of liability against Tokuda are ultimately meritorious.

DISPOSITION

Defendant SkyHop Global LLC’s motion is **GRANTED IN PART**. The Court finds, based on the operative complaint, that Plaintiff has not alleged conduct constituting a qualifying sexual-harassment dispute under the EFAA; the statute therefore does not preclude enforcement of the separate delegation provision. The Court

finds that SkyHop has established formation of an agreement containing Section V by a preponderance of the evidence, based on the individualized Paylocity records and their authentication, together with the offer letter and subsequent employment after notice of the agreement. The Court enforces Section V and **COMPELS ARBITRATION ONLY** of the threshold dispute concerning the enforceability of the remainder of the arbitration agreement. The Court does not at this time order arbitration of the underlying employment claims or determine the ultimate enforceability of the agreement as a whole.

The proceedings against SkyHop are **STAYED** pending the arbitrator's determination of the delegated enforceability dispute. Whether the underlying employment claims must be arbitrated is reserved pending that determination, after which a party may seek any further appropriate order. This order does not compel arbitration of claims against nonmoving defendant Paul Tokuda and does not, without a separate showing, stay claims against him. Plaintiff's six evidentiary objections to the original Hailom declaration are **OVERRULED** as specified in Part VI; SkyHop's evidentiary objections to the Bradley and DeCamp declarations are resolved as stated in Part VI.

The Court reaches no adjudication on the merits of Plaintiff's discrimination, harassment, retaliation, or wage-and-hour causes of action. Its EFAA ruling is confined to the question whether the complaint, as presently pleaded, alleges conduct bringing this case within that statute. The parties may address at the hearing the supplemental evidence offered with SkyHop's reply and any specific factual or statutory issue material to the Court's limited findings.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and electronically submit a proposed order repeating the adopted tentative verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and provide notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 8

25-CLJ-00513

WELLS FARGO BANK, N.A. VS. SIAOSI E FOLAU, JR

WELLS FARGO BANK, N.A.
SIAOSI E FOLAU

HARLAN M. REESE

PLAINTIFF WELLS FARGO BANK, N.A.'S MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NON-APPEARANCE

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s motion for judgment on the pleadings is **DENIED**. Plaintiff's request for judicial notice of Defendant's answer, the motion and order concerning requests for admission, and other identified filings in this action is **GRANTED** as to their existence and contents, not as blanket proof of all factual assertions appearing in them. (Evid. Code, § 452, subd. (d).)

LEGAL STANDARD

A plaintiff may obtain judgment on the pleadings when the complaint alleges facts sufficient to constitute a cause of action and the answer does not allege facts sufficient to constitute a defense. The grounds must appear on the face of the challenged pleading or in properly noticeable matters. (Code Civ. Proc., § 438, subds. (c)(1)(A), (d).) A plaintiff's motion ordinarily fails if the answer places a material element in issue. Deemed admissions may conclusively establish the particular facts admitted, notwithstanding inconsistent pleading denials. (Code Civ. Proc., § 2033.410, subd. (a).)

ANALYSIS

Defendant's deemed admissions establish the existence of an account ending in 5327, receipt of monthly statements requesting minimum payments, an account balance of \$11,550.95 as of January 16, 2025, nonpayment of any amount thereafter, and an admitted debt of at least \$11,550.95. (Request for judicial notice, Ex. B, request Nos. 1–6; order dated January 29, 2026.) They are significant admissions, but on the facts summarized in this motion they do not admit a particular payment due before January 16, 2025, nonpayment when due under the identified contractual terms, or another specific breach of the pleaded written contract. The Complaint alleges that Defendant failed to pay as agreed, but Defendant's Answer denies breach. The Court cannot enter judgment on a contested breach-of-contract element by treating all facts in the moving Complaint as admitted. (See Code Civ. Proc., § 438, subd. (c)(1)(A); *Reichert v. General Insurance Co.* (1968) 68 Cal.2d 822, 830.) The denial is without prejudice to a procedurally proper motion or trial supported by the contract, statements, admissions, and evidence establishing all required elements.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

**UD LAW AND MOTION CALENDAR
THURSDAY, SEPTEMBER 24, 2026**

2:00 PM

LINE: 1

26-UDL-00208

BRIDGE PROPERTY MANAGEMENT COMPANY VS. ARMANDO VEGA PACHECO, ET AL

**BRIDGE PROPERTY MANAGEMENT COMPANY
ARMANDO VEGA PACHECO**

**MERCEDES A. GAVIN
PRO SE**

PLAINTIFF BRIDGE PROPERTY MANAGEMENT COMPANY’S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Plaintiff Bridge Property Management Company’s motion for summary judgment is **DENIED WITHOUT PREJUDICE** on the present evidentiary showing. Defendants may present oral opposition at the hearing. (Code Civ. Proc., § 1170.7; Cal. Rules of Court, rule 3.1351(b).) The Court does not enter judgment for possession, forfeiture, damages, or costs on this motion.

BACKGROUND

Per allegations, Plaintiff is the property manager and agent of the owner of the premises at issue, at 500 King Drive Unit #608, Daly City, CA 94015 (the “Premises”). (Complaint, ¶ 2.) Defendants became tenants of the Premises from October 9, 2025, to October 8, 2026, pursuant to a written Residential Lease Agreement (the “Lease”). (*Id.*, ¶ 3, & Exh. 1; Jost Decl., ¶ 3, & Exh. 1.) Exhibit 1 to the Complaint includes an “Early Lease Termination Addendum” and also shows Plaintiff’s “General House Rules and Regulations.” (*Id.*, ¶ 3, & Exh. 1.) Plaintiff served a Notice to Quit (the “Notice”) on January 23, 2026. (*Id.*, ¶ 6, & Exh. 2.) The period stated in the Notice expired on January 28, 2026, with Defendants having failed to comply with the requirements of the Notice, and remaining in possession of the Premises. (*Id.*, ¶¶ 7-9 & 11, & Exh. 2; Jost Decl., ¶¶ 4-5.) *Inter alia*, the Complaint seeks possession and forfeiture of the Lease, damages of \$108.00 per day from February 1, 2026, until the date of entry of judgment, and costs of suit. However, the Motion “waives the fair rental value of the premises.” (Jost Decl., ¶ 6.)

The Court has granted Plaintiff’s motion to compel, holding *inter alia* that, “The matters set forth in Plaintiff’s Request for Admissions, Set One, are hereby **DEEMED ADMITTED** against Defendants.” (Order, filed on June 16, 2026.) The following four Requests for Admission (“RFA”) thus were deemed to have been admitted:

1. On January 23, 2026, Plaintiff Bridge Property Management Company caused Defendant to be served a 3-Day Notice to Quit by posting a copy of the notice to Defendant at the premises and by mailing a copy to Defendant at the premises.

2. On January 28, 2026, the period stated in the 3-Day Notice to Quit expired at the end of the day.

3. On January 1, 2026, at approximately 3:30 a.m., Armando Vega Pacheco caused another resident to sustain physically [sic] injuries, such as a dislocated left shoulder and dislocated right elbow, on the Property and caused the resident to be taken to the hospital.

4. On January 1, 2026, at approximately 3:30 a.m., Armando Vega Pacheco physically assaulted another resident on the Property.

(Gavin Decl., ¶ 2, & Exh. 1.)

Plaintiff brings the Motion pursuant to Code of Civil Procedure section 1170.7.

LEGAL STANDARD

A plaintiff moving for summary judgment must establish every element of the unlawful-detainer claim and the absence of a triable defense; a failure to oppose does not eliminate that initial burden. (Code Civ. Proc., §§ 437c, subds. (c), (p)(1), 1170.7.)

ANALYSIS

Burden and admissions

The June 16, 2026 order deeming four requests for admission admitted establishes the admitted matters against the responding parties within the order's scope, including an assault by Armando Vega Pacheco, the stated January 23 service by posting and mailing, and the stated expiration date. The order does not establish facts beyond the precise admissions, including compliance with every statutory prerequisite for substituted notice, the lease provision or statutory ground authorizing termination as to each named defendant, or a basis for forfeiture against a tenant whose misconduct is not admitted. (See Code Civ. Proc., §§ 1161, 1162, 2033.410, subd. (a).)

Material gaps

The moving papers do not sufficiently establish the statutory ground of termination, the applicable lease or house-rule provisions binding each named tenant, or the predicates for posting-and-mailing service if that method required reasonable diligence. The lease and related documents appear to contain fewer signatures than the number of named defendants. The Court cannot infer from an admission about Pacheco's assault that each co-defendant is independently subject to forfeiture without resolving the governing statute, lease terms, and tenancy relationships. The Answer also raises provocation and self-defense; while unsupported allegations alone cannot defeat a properly supported motion, they identify potentially material issues requiring attention to the governing termination theory. The record does not establish these matters as a matter of law against every defendant.

JUDICIAL NOTICE AND FURTHER PROCEEDINGS

Plaintiff's request for judicial notice is **GRANTED** only as to the existence and contents of identified filings and orders in this action. The Court does not judicially notice the truth of contested factual statements in declarations or pleadings merely because they were filed. (Evid. Code, § 452, subd. (d).) Plaintiff may pursue trial or a properly supported subsequent motion, subject to applicable notice and scheduling rules. The purported waiver of fair rental value does not cure the failure to establish entitlement to possession. No separate statement is required for this summary proceeding. (Code Civ. Proc., §§ 437c, subd. (s), 1170.7.)

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 2

26-UDU-00738

26-UDU-00738

**GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY
DENISE WEEKS**

**GRAND PRIX FIXED LESSEE LLC, A
DELAWARE LIMITED LIABILITY
COMPANY
DENISE WEEKS**

PLAINTIFF GRAND PRIX FIXED LESSEE LLC’S MOTION TO COMPEL THE DEPOSITION OF DEFENDANT DENISE WEEKS

TENTATIVE RULING:

The unopposed motion is **GRANTED**.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

Posted: 3:00 P.M.